

24CV06363 Ana Guadalupe Garcia vs Santa Barbara City College et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-14

Motion: CMC; Motion: Attorney Fees

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Tentative Ruling: Ana Guadalupe Garcia vs Santa Barbara City College et al

Case Number

24CV06363

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/14/2026 - 10:00

Nature of Proceedings

CMC; Motion: Attorney Fees

Tentative Ruling

Ana Guadalupe Garcia v. Santa Barbara City College, et al.

Case No. 24CV06363

Hearing Date: September 14, 2026

HEARING: Motion for Attorney Fees by Defendants

ATTORNEYS: For Plaintiff Ana Guadalupe Garcia: Peggy A. Farrell, Law Office Of Peggy A. Farrell APC

For Defendants Santa Barbara City College, Veronica Gallardo, Sabrina Barajas, Jennifer Hamilton, Paloma Arnold, Christina Llerena, and Rebecca Robertson: Thomas M. Madruga, David Adida, Olivarez Madruga Law Organization, LLP

TENTATIVE RULING:

The motion for attorney fees by defendants is continued to November 9, 2026, in this department at 10:00 a.m. The parties shall file a joint statement and update the court on the status of this motion on or before October 30, 2026.

Background:

On November 13, 2024, plaintiff Ana Guadalupe Garcia (Garcia) filed a complaint against defendants Santa Barbara City College (SBCC), Veronica Gallardo (Gallardo), Sabrina Barajas (Barajas), Jennifer Hamilton (Hamilton), Paloma Arnold (Arnold), Christina Llerena (Llerena), and Rebecca Robertson (Robertson).

On January 29, 2025, SBCC, Hamilton, Arnold, Llerena, and Robertson filed an anti-SLAPP motion for an order striking all causes of action because Garcia's claims are based on protected matters of public interest under Code of Civil Procedure section 425.16 and because Garcia is not likely to prevail on the merits. On February 24, 2025, Barajas and Gallardo joined the motion.

On July 21, 2026 (July 21 Order), the court granted the anti-SLAPP motion as to the seventh cause of action alleged in the complaint, but otherwise denied the motion.

On September 25, 2025, plaintiff filed a notice of appeal of the July 21 Order and related notices of rulings.

On October 6, 2025, defendants moved for attorneys as a prevailing moving party on the anti-SLAPP motion.

On December 24, 2025, the court entered a stipulated order to stay the motion for attorney fees pending appeal.

On April 14, 2026, the court of appeal dismissed plaintiff's appeal at the request of plaintiff and issued a remittitur.

On May 27, 2026, the court entered a stipulated order to lift the stay on the motion for attorney fees.

Based on a review of the filings by the parties on July 14 and July 23, it appears the parties have reached an agreement in principle on the attorney fee issue. "The Parties, through their respective counsel, have informally agreed to a compromise of the amount of attorneys' fees sought by Defendants in the motion but there is no current agreement to take the motion off calendar. [¶] The Parties are in the process of fashioning the settlement terms regarding the attorneys' fees. The Parties have been working on a joint stipulation to be filed with the Court but the Parties have not reached an agreement on all the terms of the stipulation." (Reply ISO Mtn. for Atty. Fees, July 23, 2026, p. 2, ll.13-15.)

On July 27, 2026, the court entered an order continuing the motion for attorney fees to this hearing.

On August 31, 2026, defendants filed a notice of continuance of the attorney fee motion, stating that the motion is continued to November 9, 2026.

On September 2, 2026, plaintiff filed a case management (CMC) statement indicating that, "[t]he Parties have resolved Defendants' motion for attorney's fees" (Pltf. CMC Stat., ¶ 19.)

Analysis:

The court's docket does not reflect an order of continuance for the pending attorney fee motion. The court will deem the October 31 notice of continuance filed by defendants as a request for a continuance to November 9. There was no response or objection by plaintiff to this notice, and plaintiff filed a September 2 CMC statement indicating the attorney fees have been resolved. Based on the request of the moving defendants and the apparent advanced negotiations or resolution of the attorney fees at issue in the motion, the court will continue the motion as requested to November 9.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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